

23NWCV02532 23NWCV02532

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C09%2F08%2F2026

Source SHA-256: 0a758c1f3d19f77a1525a9327ce4a3c757c264704f90454e06bbf446f82637ec

Case Number: 23NWCV02532 Hearing Date: September 8, 2026 Dept: P

E.G. v. ABC

UNIFIED SCHOOL DISTRICT, ET AL.

CASE NO.: 23NWCV02532

HEARING: 09/08/2026 @ 9:30 AM

#8

TENTATIVE ORDER

I.

Defendant ABC Unified School District's demurrer to the third and fourth causes of action in the third amended complaint is SUSTAINED without leave to amend.

II.

Defendant ABC Unified School District's motion to strike is GRANTED.

Moving party to give notice.

Defendant ABC Unified School District (ABCUSD) demurs to the third and fourth causes of action alleged against it in the third amended complaint (TAC).

Background

On August 7, 2023, Plaintiff E.G., a minor by her guardian ad litem Eric Gravitt, (Plaintiff) filed this action against Defendants ABCUSD; Dr. Crechena Wise, as an individual and in her official capacity as Director Secondary Curriculum & Professional Learning for ABCUSD; Melissa Christensen, as an individual and in her official capacity as principal of Kennedy Stem Academy; Melinda Ortiz, as an individual and her Director of School Services, Child Welfare and Attendance, and Does 1 to 50, inclusive (collectively, Defendants). Following the Court's ruling on the demurrer sustaining in part and overruling in part the complaint, Plaintiff filed a first amended complaint (FAC). On October 14, 2025, the Court granted Plaintiff's motion for leave to file the second amended complaint (SAC). On February 10, 2026, Plaintiff filed the operative TAC.

The TAC alleges the following: In January of 2022, when Plaintiff was a fifth grader attending a public school, she was informed she must get the COVID-19 vaccine or wear a mask to go to class. (TAC, ¶ 12.) Plaintiff's father refused to take Plaintiff home and objected to the requirements on religious grounds. (TAC, ¶ 13.) The TAC alleges male students who objected to the requirements on religious grounds were allowed to return to class. (TAC, ¶ 14.) On January 25, 2022, Plaintiff was barred from entering the classroom by the school principal, Christensen, and three district administrators, Ortiz, Scott Smith, and Wise. (TAC, ¶¶ 15-16.) The administrators spoke to Plaintiff's father, who recorded the conversation. (TAC, ¶ 17.) Ortiz directed Wise to call the sheriff's department and file a police report claiming Plaintiff's father was hostile. (TAC, ¶ 20.) During this time, Christensen and Ortiz walked Plaintiff to an isolation room and the sheriff took Plaintiff's phone. (TAC, ¶¶ 22-23.) Plaintiff was then kept in a "closet-sized room" where Plaintiff had difficulty breathing. (TAC, ¶ 26.) The next day, Plaintiff and her father returned to school where they were blocked from entering the campus by police. (TAC, ¶ 31.) On February 21, 2022, Plaintiff reported that wearing a mask caused her to be dizzy and unable to breathe. (TAC, ¶ 35.) Bill Hundley (Mr. Hundley), the Child and Welfare and Attendance Unit Coordinator for ABCUSD, gave Plaintiff the option of sitting outside the classroom, which Plaintiff denied, or being directed to an isolation room until her parent picked her up. (TAC, ¶ 36.) Plaintiff was then prohibited from going to school for fifteen days. (TAC, ¶ 37.)

The TAC asserts five causes of action: (1) false imprisonment, (2) negligence, (3) discrimination, (4) harassment, and (5) defamation.

Legal Standard

Demurrer Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law.” (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

“Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) A “[p]laintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Ibid.)

Motion to Strike Standard

Motions to strike are used to reach defects or objections to pleadings that are not challengeable by demurrer (i.e., words, phrases, prayer for damages, etc.). (Code Civ. Proc., §§ 435-437.) A motion to strike lies only where the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc., § 437.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference

at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) "The means by which the demurring party met and conferred...and that the parties did not reach an agreement" or (b) "[t]hat the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." (Code Civ. Proc., § 430.41, subd. (a)(3).)

Defense counsel provides a declaration attesting to its attempts to meet and confer with Plaintiff's counsel including (1) calling Plaintiff's counsel and receiving an extension, (2) transmitting letters to her email address, (3) sending a meet and confer letter via Priority Mail Express. (Strumreiter Decl., ¶¶ 2-4.) Defense counsel explains that Plaintiff's counsel let him a voicemail that certain letters were lost by her mail center. (Strumreiter Decl., ¶ 5.) Based on these attempts, the Court will proceed to rule on the demurrer and motion to strike. (See Code Civ. Proc., § 430.41, subd. (a)(4).)

Request for Judicial Notice

ABCUSD's Notice of Demurrer refers to a Request for Judicial Notice filed December 18, 2025.

Plaintiff opposes this request for judicial notice on the grounds that ABCUSD failed to serve the request for judicial notice. Plaintiff puts forth a declaration by an individual who manages relevant mail who states that the envelope containing the demurrer did not contain the request for judicial notice. (Landau Decl., ¶¶ 2-3.) Plaintiff argues that ABCUSD's demurrer is frivolous "because ABC failed to introduce and/or attempted to introduce the alleged government claim that ABC claims is at issue here so that Plaintiff can assess the authenticity and accuracy of the version of the government claim that ABC based this demurrer on. In doing so, ABC has deprived this Court from being able to make decision based on substantial evidence." (Opp., 6:10-17.)

In reply, ABCUSD contends that it was filed and served on December 17, 2025, and thus was not filed concurrently with the instant demurrer.

Here, the Court finds that ABDUSD's request for judicial notice is technically compliant. Under California Rules of Court, rule 3.1306(c),

“[a] party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material. If the material is part of a file in the court in which the matter is being heard, the party must: (1) Specify in writing the part of the court file sought to be judicially noticed; and (2) Either make arrangements with the clerk to have the file in the courtroom at the time of the hearing or confirm with the clerk that the file is electronically accessible to the court.” Plaintiff’s counsel does not dispute whether it was served or filed on December 17, 2025. Moreover, government claims are subject to judicial notice. (See *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 377 [“If a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity’s records do not show compliance.”].)

However, to the extent that Plaintiff disputes the accuracy of the government claim, the Court denies judicial notice. The Court notes that Plaintiff both refers to the importance of the government claim for adjudication on the merits of this demurrer and also disputes the accuracy of requested documents. However, the Court finds that judicial notice of the government claim is not essential to the ruling on this demurrer because both the statute of limitations argument and sufficiency of the allegations argument provide independent bases for the determination of this demurrer.

Discussion

ABCUSD demurs to the TAC on the grounds that the third and fourth causes of action fail to state facts sufficient to constitute a cause of action and are uncertain.

Statute of Limitations

ABCUSD first demurs to the third and fourth causes of action on the grounds that they are barred by the statute of limitations.

In opposition, Plaintiff argues that ABCUSD waived the statute of limitations argument because the Court “already decided the issue multiple times before finding that the added allegations arose from the same general set of facts” and also, because ABCUSD did not raise it in opposition

to Plaintiff's motion for leave to amend. (Opp., 5:25-28.)

In reply, ABCUSD argues that the Court has not addressed these arguments. The Court agrees. The only demurrer the Court heard on the merits in this action was the demurrer to the complaint, on October 9, 2024, where the statute of limitations was not raised. (Order, 10/9/24.) To the extent Plaintiff is referring to the demurrer to the SAC, the Court never heard that demurrer because prior to the hearing, the Court granted Plaintiff's motion for leave to amend. (See Order, 2/10/26; Notice of Withdrawal of Demurrers to SAC.) Moreover, as argued by ABCUSD, Plaintiff does not cite authority showing that a statute of limitations argument is waived if it is not raised in opposition to a motion for leave to amend. Therefore, the Court does not find that ABCUSD waived the statute of limitations argument and proceeds to address it for the first time here.

Code of Civil Procedure section 338, subdivision (a) establishes a three-year statute of limitations for "[a]n action upon a liability created by statute." "Unless an amended complaint relates back to a timely filed original complaint, it will be barred by the statute of limitations." (Scholes v. Lambirth Trucking Co. (2017) 10 Cal.App.5th 590, 597, citation omitted.) "Under the relation-back doctrine, in order to avoid the statute of limitations, the amended complaint must: rest on the same general set of facts as the general complaint, refer to the same accident and same injuries as the original complaint, and refer to the same instrumentality as the original complaint." (Id., at p. 597-98, citing Norgart v. Upjohn Co. (1999) 21 Cal.4th 383, 408-09.) "The relation-back doctrine requires us to compare the factual allegations in the original and amended complaints." (Id., at p. 598.)

The TAC brings the third cause of action for discrimination pursuant to Education Code section 220, subdivision (a) and Government Code section 11135, subdivision (a). (TAC, ¶¶ 63-65 ["E.G. was deprived for her statutory right to fully participate in the educational process, free from discrimination and harassment.].) The fourth cause of action similarly arises out of violations of Education Code section 220, subdivisions (a), (b), and (c). Therefore, as argued by ABCUSD, these causes of action are governed by the statute of limitations under Code of Civil Procedure section 338, subdivision (a).

ABCUSD recounts the relevant procedural history regarding

the prior complaints. The original complaint asserted claims for (1) false imprisonment, (2) negligence, (3) IIED, (4) violation of the Bane Act, (5) violation of the right to free speech, and (6) human experimentation. The second amended complaint (SAC), filed on October 14, 2025, marked the first time that the discrimination and harassment causes of action were added. While ABCUSD filed a demurrer and motion to strike the SAC, the Court found ABCUSD's demurrer moot due to the granting of Plaintiff's motion for leave to amend. (Order, 2/10/26.)

ABCUSD argues that the third and fourth causes of action are time-barred as they arise out of events that took place in February and March of 2022, over three years before October 14, 2025, when the claims were first brought in the SAC. (TAC, ¶ 38.) ABCUSD further argues that the third and fourth causes of action do not arise out of the same facts as those alleged in the FAC and therefore do not relate back.

ABCUSD refers to the original complaint to show that the gravamen of the complaint challenged its "anti-COVID" measures. The original complaint alleges that ABCUSD's measures, including mandating masks and not permitting Plaintiff to remain on campus without a mask or vaccination, were negligent and violated the Bane Act and right to free speech. (See Complaint.) The TAC alleges that Plaintiff was deprived of her right to participate in the educational process as follows:

(1) targeting E.G. for discrimination for objecting to taking the COVID-19 vaccine on religious grounds; (2) allowing males to fully participate in the educational process without being required to get the COVID-19 vaccine, wearing a mask, not getting burns on their laps from trying to study, not being subjected to isolation; (3) allowing non-Christians to fully participate in the educational process without being required to get the COVID-19 vaccine, wearing a mask, not getting burns on their laps from trying to study, not being subjected to isolation; (4) physically assaulting E.G. for asserting her faith, while males and non-Christians were not harmed; and harming E.G.'s reputation by making false statements to third parties falsely accusing E.G. of committing the crime of recording private conversations.

(TAC, ¶ 63.) The harassment claim includes the foregoing, and adds:

(5) falsely accusing E.G. of committing the crime of recording private conversations; (6) reporting E.G. to the police; (7) physically assaulting E.G. by jerking her hand while involuntarily taking her phone away; (8) causing E.G. to suffer burns to her lap, (9) causing E.G. to have fainting spells when she complained about the school-required-mask was preventing her from breathing and causing her pain.

(TAC, ¶ 67.)

“An amended complaint relates back to an earlier complaint if it is based on the same general set of facts, even if the plaintiff alleges a different legal theory or new cause of action.” (Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves, & Savitch, LLP (2011) 195 Cal.App.4th 265, 277, citations omitted.) “In determining whether the amended complaint alleges facts that are sufficiently similar to those alleged in the original complaint, the critical inquiry is whether the defendant had adequate notice of the claim based on the original pleading.” (Ibid.)

Here, the Court agrees that there is no mention of religious-based or gender-based reasons for discriminating against Plaintiff in the complaint. The original complaint alleged “[v]accinated students were sent back to class, without delay. Comparatively, parents of unvaccinated students were contacted and ordered to retrieve their children in a manner that amounted to unequal treatment of those who chose not to enter themselves into the COVID medical trials across the board. This policy is discriminatory and repugnant on its face.” (Complaint, ¶ 24.) Additionally, “E.G. later told her parents she was scared because she thought she was somehow ‘in trouble’ for being unvaccinated...E.G. still felt that she was being punished for her organic status.” (Complaint, ¶ 29.)

In contrast, the TAC alleges “when male students and their parents objected to the COVID-19 vaccine or the males wearing the masks on religious grounds, they were allowed to come on campus and to go to their classroom for instruction/class without being forced to take the COVID-19 vaccine and/or wear a mask. This differential treatment caused E.G. to experience extreme confusion and anxiety. The differential treatment made it clear to E.G. that she was being targeted because of her faith and gender.” (TAC, ¶ 14.) Further, “[s]he felt helpless for being targeted because she is a female and a Christian, while other males and non-Christian were allowed to go to school without taking the COVID-19 vaccine or having to wear a mask, but not

her.” (TAC, ¶ 30.)

The Court finds that the discrimination and harassment claims are new theories arising out of new, distinct facts. There is nothing in the complaint to allege or imply that Plaintiff was injured not only due to the vaccine policies themselves, but a disparate application of the policies based on Plaintiff’s religion or gender. As the TAC, and the SAC, in which these claims were first raised, were filed over three years from the subject time period in January through March of 2022, these claims are time-barred under the three-year statute of limitations.

The demurrer can therefore be sustained on this basis.

Government Claims Act Requirements

ABCUSD additionally argues that the facts underlying the third and fourth causes of action were not reflected in the claim.

The Court does not rule on this argument based on the denial of ABCUSD’s request for judicial notice.

Sufficiency of Allegations: Discrimination and Harassment

ABCUSD additionally demurs to the third and fourth causes of action on the grounds that the TAC fails to state facts sufficient to constitute the causes of action.

Education Code section 220 provides:

No person shall be subjected to discrimination on the basis of disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or any other characteristic that is contained in the definition of hate crimes set forth in Section 422.55 of the Penal Code, including immigration status, in any program or activity conducted by an educational institution that receives, or benefits from, state financial assistance, or enrolls pupils who receive state student financial aid.

“An interpretation of section 220 requires consideration of various other provisions in the Education Code, including section 200, which sets forth the state's antidiscrimination policy; section 201, which contains legislative declarations in support of that policy; and sections 262.3 and 262.4, which provide for enforcement of the antidiscrimination law.” (Donovan v. Poway Unified School District (2008) 167 Cal.App.4th 567, 590.) Pursuant to Education Code section 262.4, Education Code section 220 may be enforced through a civil action. The Legislature intended Chapter 2 of the Education Code to “be interpreted as consistent with Article 9.5 (commencing with Section 11135) of Chapter 1 of Part 1 of Division 3 of Title 2 of the Government Code, Title VI of the federal Civil Rights Act of 1964 (42 U.S.C. Sec. 1981, et seq.), Title IX of the Education Amendments of 1972 (20 U.S.C. Sec. 1681, et seq.), Section 504 of the federal Rehabilitation Act of 1973 (29 U.S.C. Sec. 794(a)), the federal Individuals with Disabilities Education Act (20 U.S.C. Sec. 1400 et seq.), the federal Equal Educational Opportunities Act (20 U.S.C. Sec. 1701, et seq.), the Unruh Civil Rights Act (Secs. 51 to 53, incl., Civ. C.), and the Fair Employment and Housing Act (Pt. 2.8 (commencing with Sec. 12900), Div. 3, Gov. C.).” (Ed. Code, § 201, subd. (g).)

A cause of action for a claim arising out of Education Code section 220 requires a plaintiff to show: “(1) he or she suffered ‘severe, pervasive and offensive’ harassment, that effectively deprived plaintiff of the right of equal access to educational benefits and opportunities; (2) the school district had ‘actual knowledge’ of that harassment; and (3) the school district acted with ‘deliberate indifference’ in the face of such knowledge.” (Donovan, supra, 167 Cal.App.4th at p. 579, 581 [“We conclude the Legislature intended Title IX’s elements to govern an action under section 220.”].) Education Code section 220 protects an individual based on its stated characteristics. (Ed. Code, § 220.)

ABCUSD contends that the TAC’s allegations about religious and sex-based discrimination are conclusory. ABCUSD argues that the TAC contains allegations that Plaintiff believed she was being targeted on protected grounds rather than alleging that she was discriminated against on protected grounds. For example, the TAC alleges that when ABCUSD administrators approached her “she thought she was being targeted because of her Christian faith and for being a female.” (TAC, ¶ 16.) This was made “clear” to Plaintiff due to other male students being allowed on campus despite objecting to the vaccine or mask requirements on “religious grounds.” (TAC, ¶ 13.) Here, the

Court agrees that any alleged discrimination or harassment against Plaintiff arises out of vaccination status and/or the objection to wearing a mask.

The allegations in the complaint allege that ABCUSD first initiated the anti-COVID policy against Plaintiff by calling her parents to pick her up on the basis of her vaccine status: "In January 2022, school officials required E.G. to get the COVID-19 vaccine to go to class. Even though she did not have any symptoms of having COVID-19, school officials insisted that E.G. get the COVID-19 vaccine or she would not be allowed to go back to class. E.G. and her parents objected to E.G. getting the COVID-19 vaccine on religious grounds/their Christian faith." (TAC, ¶ 12.) Any action taken by the school against Plaintiff is alleged to be in furtherance of anti-COVID policies. The TAC alleges that ABCUSD ignored Plaintiff's religious objection rather than discriminated on the basis of it: "E.G. and her father again objected on religious grounds. And again, Ortiz and the Principal ignored their religious objection." (TAC, ¶ 32.) Further, the TAC alleges that on February 21, 2022, Plaintiff initially reported to her teacher "that the mask was making her dizzy, see black dots, she was unable to breath with it over her nose and mouth, and she that it was making her faint," after which the teacher called the principal. (TAC, ¶ 35.) Once the principal arrived, "Principal told E.G. she must leave the classroom if she was not going to put on a mask. E.G. stated she was not going to put a mask because she could not breath and on religious grounds." (TAC, ¶ 36.) The principal then provided certain options to accommodate Plaintiff, including sitting outside, which Plaintiff objected to due to the weather, or then going to the "isolation room." (TAC, ¶ 36.) While a religious objection is mentioned, neither the teacher (who is not alleged to initially be aware of a religious objection) nor the principal are alleged to enforce the anti-COVID policy based on Plaintiff's religion. Thus, the Court agrees that the TAC does not sufficiently allege that ABCUSD prevented Plaintiff from attending school based on her religion or gender, outside of her vaccination status. Moreover, as argued by ABCUSD, these allegations do not rise to severe or pervasive levels.

Further, ABCUSD contends that the allegations about discrimination due to vaccination status are not covered under Education Code section 220. The Court agrees. Vaccination status is not covered under the statute. (Ed. Code, § 220.)

Additionally, ABCUSD argues that the TAC's reference to Government Code section 11135 does not warrant a damages remedy for Plaintiff.

The Court agrees. Government Code section 11139 provides that Section 11135 “may be enforced by a civil action for equitable relief, which shall be independent of any other rights and remedies.” The Donovan court noted that the Legislature “expressly provide[d] for a private right of action, but expressly limited enforcement to a ‘civil action for equitable relief.’” (Donovan, supra, 167 Cal.App.4th at p. 594.) As such, Government Code section 11135 does not support a basis for the relief Plaintiff seeks here.

As to the harassment claim, ABCUSD also raises that Plaintiff cites to statutory provisions that do not exist, namely, Education Code section 220, subdivisions (a), (b), (c). The Court agrees that these do not exist but does not find the claim fatally uncertain on this basis.

Accordingly, ABCUSD’s demurrer to the third and fourth causes of action are SUSTAINED without leave to amend based as they are barred under the applicable statute of limitations and because the TAC fails to allege facts sufficient to constitute the causes of action.

Motion to Strike

ABCUSD moves to strike the following portions of the TAC:

(1) the prayer for punitive damages (TAC, Prayer, ¶ 4); (2) the prayer for civil penalties pursuant to Civil Code sections 51 and 52 (TAC, Prayer, ¶ 5); and (3) the prayer for attorney’s fees (TAC, Prayer, ¶ 6).

First, ABCUSD argues that punitive damages claims against a public entity are improper based on ABCUSD’s immunity. “[A] public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.” (Gov. Code, § 818.) As the TAC seeks punitive damages pursuant to Civil Code section 3294, it is improper.

Next, ABCUSD moves to strike the prayer for civil penalties pursuant to Civil Code sections 51 and 52 on the grounds that Plaintiff does not seek damages under the Unruh Civil Rights Act. The Court agrees. On the same grounds, ABCUSD moves to strike Plaintiff’s prayer for attorney’s fees under Civil Code sections 51 and 52 and “all applicable provisions of law.” (TAC, Prayer, ¶ 6.) As argued by ABCUSD, none of Plaintiff’s claims carry an award of attorney’s fees.

Accordingly, ABCUSD's motion to strike is GRANTED.